

25STCV22677 25STCV22677

County: los-angeles

Division: Civil Law and Motion

Department: 514

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Case Number: 25STCV22677 Hearing Date: July 10, 2026 Dept: 514

Vargas v. Los

Angeles County Metropolitan Transportation Authority

25STCV22677

Plaintiff's Motion to Set Aside Dismissal

Tentative Ruling

The motion is granted.

Background

On August 1, 2025, Anthony Vargas

("Plaintiff") filed the complaint in this action Los Angeles County

Metropolitan Transportation Authority, City of Los Angeles, County of Los

Angeles, State of California, California Department of Transportation, John Doe

1, John Doe 2, and Does 1 through 50, asserting causes of action for motor

vehicle negligence and general negligence arising out of an alleged bus

accident at or near the intersection of Western Avenue and Washington Boulevard

in Los Angeles on August 7, 2024.

On February 24, 2025, the Court, at the

request of Plaintiff, dismissed City of Los Angeles.

On March 5, 2026, the Court, at the request

of Plaintiff, dismissed State of California and California Department of

Transportation.

On March 5, 2026, County of Los Angeles
filed an answer to the complaint.

On April 30, 2026, Plaintiff filed a request
to dismiss the entire action without prejudice.
Based on Plaintiff's request, the Court dismissed the entire action that
same day.

On May 19, 2026, Plaintiff filed a motion
to set aside the dismissal entered by the Court on April 30. The hearing on the motion was set for June
16, 2026. When Plaintiff did not appear
at the hearing, the Court placed the motion off calendar.

On June 16, 2026, Plaintiff against filed a
motion to set aside the dismissal entered by the Court on April 30. No opposition has been filed.

Legal Standard

Code of Civil Procedure
section 473, subdivision (b) (as amended effective January 1, 2026) provides
for both discretionary and mandatory relief from (among other things) a
default, a dismissal, or entry of a judgment.

As to discretionary
relief, the statute states: "The court may, upon any terms as may be just,
relieve a party or the party's legal representative from a judgment, dismissal,
order, or other proceeding taken against the party through the party's mistake,
inadvertence, surprise, or excusable neglect."
(Code Civ. Proc., § 473, subd. (b).)
An application for discretionary relief must "be accompanied by a copy
of the answer or pleading proposed to be filed ...; otherwise the application
shall not be granted." (Ibid.)

An application for
discretionary relief must be made "within a reasonable time, in no case
exceeding six months, after the judgment, dismissal, order, or proceeding was
taken." (Ibid.)

Section 473,

subdivision (b) also contains a separate provision for mandatory relief from a dismissal, default, or default judgment.

The statute provides for mandatory relief:

“whenever an application for relief ... is in proper form, and is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect ... unless the court finds that the default or dismissal was not in fact caused by the attorney’s mistake, inadvertence, surprise, or neglect.”

(Ibid.) An application for mandatory relief must be made “no more than six months after entry of judgment.” (Ibid.) “[W]henver relief is granted based on an attorney’s affidavit of fault,” the court must “direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties.” (Ibid.)

“When relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-982.)

Subdivision (c)(1) of section 473 provides:

“Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.”

Discussion

Plaintiff moves

for mandatory relief, under Code of Civil Procedure section 473, subdivision (b), from the dismissal of his entire complaint entered on April 30, 2026.

All substantive

and procedural requirements are satisfied.

Plaintiff's counsel, Jacob Chobanian, submits a declaration attesting to his mistake in filling out the Request for Dismissal form (CIV-110): counsel explains that he intended to dismiss only County of Los Angeles, not the entire action. (Chobanian Decl., ¶¶ 3-4.)

The motion is
granted.

Conclusion

The Court GRANTS

the motion of Plaintiff Anthony Vargas to set aside the dismissal of the entire action entered on April 30, 2026.

The Court

VACATES the dismissal entered on April 30, 2026.

If Plaintiff

seeks to dismiss Defendant County of Los Angeles, Plaintiff must file a new request for dismissal.

The Court SETS a

Case Management Conference on October 7, 2026, at 8:30 a.m., in Department 514 of the Stanley Mosk Courthouse.

The Court SETS

an Order to Show Cause re Why Plaintiff's Counsel Should not be Subject to Monetary Sanctions in an Amount of up to \$500 for Failing to Serve all Defendants and File Proof of Service Within the Time Periods Set Forth in California Rules of Court, Rule 3.110, for October 7, 2026, at 8:30 a.m., in Department 514 of the Stanley Mosk Courthouse.

Any response to

the OSC must be in writing and must be filed no later than September 30, 2026.

The Judicial

Assistant is directed to give notice to Plaintiff.

Plaintiff is ordered

to give notice to all defendants who have appeared or who appears prior to the
Case Management Conference.